

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2024CUMM026790: ASHLEY J GOCHMAN vs SIMI VALLEY HOSPITAL, et al.
08/21/2026 in Department 41
Motion to Tax Costs**

DENY and CONTINUE

the motion insofar as Plaintiffs seek to strike AHSV's May 11, 2026, Memorandum of Costs as untimely or based on the alleged March 2026 cost-waiver agreement. Because the July 23, 2026, order subsequently set aside the dismissal as to Jaxon and Oakley Sonsalla for the limited purpose of effectuating settlement, while preserving Defendants' right to seek costs from Hazely Persky, CONTINUE determination of the amount recoverable against Persky for limited supplemental briefing concerning allocation.

Plaintiffs' Motion to Strike and Tax Costs is DENIED insofar as it seeks to strike AHSV's May 11, 2026, Memorandum of Costs in its entirety as untimely. Although the memorandum was filed after the ordinary deadline under California Rules of Court, rule 3.1700(a)(1), the Court expressly granted Defendants leave to file their cost memoranda in its April 29, 2026, ruling. The deadline is mandatory but nonjurisdictional and may be relieved against under Code Civ. Proc. § 473(b). (*Sanabria v. Embrey* (2001) 92 Cal.App.4th 422, 426; *Russell v. Trans Pacific Group* (1993) 19 Cal.App.4th 1717, 1728-1730.)

Plaintiffs' original cost-waiver argument likewise does not require striking the memorandum. The Court's subsequent July 23, 2026, order now controls the present posture. That order set aside the prior dismissal as Jaxon and Oakley Sonsalla solely to effectuate their settlement and expressly preserved Defendants' right to seek costs from Persky. Persky remains dismissed without prejudice.

The amount recoverable against Persky requires further consideration, however. AHSV's existing memorandum and the parties' briefing predate the July 23 order and do not address which claimed costs were incurred and reasonably necessary in defending against Persky's claims. California law requires the Court to examine the reason each jointly incurred cost was incurred and does not permit an across-the-board numerical allocation merely based on the number of parties. (*Charton v. Harkey* (2016) 247 Cal.App.4th 730, 743-745; *Quiles v. Parent* (2018) 28 Cal.App.5th 1000, 1017-1018.)

Accordingly, determination of the amount of costs recoverable against Persky is CONTINUED to a date set by the Court. AHSV shall submit supplemental briefing and supporting evidence identifying item by item, which claimed costs were incurred and reasonably necessary in defending against Persky's claims. AHSV should also address the \$144 CourtCall appearance-fee item claimed as "Other," including the statutory basis and reasonable necessity for that item. Plaintiffs may respond on a schedule set by the Court.

Counsel for AHSV is to give notice of the Court's ruling.